

Carena — De Officio Sanctissimae Inquisitionis (Bologna 1668)

Latin–English parallel text: printed pp. 65, 76, 78–79

Latin	English
A. Printed p. 65 — § II, <i>De casibus ... non parcitur</i>, n. 10: the four unforgivable cases, of which the third** is the one founded on <i>Cum ex Apostolatus officio</i>**	A. Printed p. 65 — § II, <i>De casibus ... non parcitur</i>, n. 10: the four unforgivable cases, of which the third** is the one founded on <i>Cum ex Apostolatus officio</i>**
Context: Titulus Secundus (<i>De Hæreticis pœnitentibus</i> , running head “Titulus Secundus”), § II. The <i>Cum ex Apostolatus officio</i> citation belongs to numbered item 10 , in the paragraph “Tertius casus est...”, which begins at the foot of the left column and is completed at the head of the right.	Context: Titulus Secundus (<i>De Hæreticis pœnitentibus</i> , running head “Titulus Secundus”), § II. The <i>Cum ex Apostolatus officio</i> citation belongs to numbered item 10 , in the paragraph “Tertius casus est...” (“The third case is...”), which begins at the foot of the left column and is completed at the head of the right.
§. SECVNDVS.	§ TWO.
<i>De casibus, in quibus Hæretico pœnitenti, etiam pro prima vice non parcitur.</i>	<i>On the cases in which a penitent Heretic is not spared, even for the first time.</i>
10. QVamuis regulariter pœnitens hæreticus ad misericordiam pro prima vice admittatur, in nonnullis tamen casibus ei nullo modo parcitur.	10. ALTHOUGH as a rule a penitent heretic is admitted to mercy for the first time, nevertheless in several cases he is in no way spared.
Primus casus est, in celebrante Missam, & administrante Sacramentum Pœnitentiæ cum Sacerdos non sit; Nam talis etiam pro primo lapsu traditur Curiaë sæculari, vti probaui in proprio tit. de celebrantibus, &c.	The first case is in one who celebrates Mass, and who administers the Sacrament of Penance when he is not a Priest; for such a one, even for a first lapse, is handed over to the secular Court, as I have proved in the proper title on those who celebrate, etc.
Secundus casus est, de hæreticis, qui negant Trinitatem, Diuinitatem D. N. I. Christi, eius Conceptionem, de Spiritu Sancto, mortem ipsius, vt nos redimeret, ac Virginitatem B. M. V. vt habetur in Constitut. Pauli I V. incip. Cum quorundam hominum malitia, quæ Romæ die 18. Maij 1597. fuit practicata, dum in Ecclesia Sanctæ Mariæ supra Mineruam, vnus penitens, qui inciderat in casum dictæ Constitutionis fuit sæculari brachio relaxatus, vt attestatur <i>Campan. in diuers. iuris can. Rubr. 1. num. 47. in fin. & de hac Bulla vide Scortiam in scelectas Rom. Pontific. Constit. Epit. 67.</i>	The second case is of heretics who deny the Trinity, the Divinity of Our Lord Jesus Christ, His Conception of the Holy Spirit, His death, that He might redeem us, and the Virginity of the Blessed Virgin Mary, as is had in the Constitution of Paul IV beginning <i>Cum quorundam hominum malitia</i> , which at Rome, on the 18th day of May 1597, was put into practice, when in the Church of Saint Mary above Minerva a certain penitent, who had fallen into the case of the said Constitution, was released to the secular arm, as <i>Campan. in diuers. iuris can. Rubr. 1. num. 47. in fin.</i> attests; & <i>de hac Bulla vide Scortiam in scelectas Rom. Pontific. Constit. Epit. 67.</i>
Tertius casus est, de quo in Constitutione eiusdem	The third case is that of which in the Constitution of the same

<i>Latin</i>	<i>English</i>
[col. b]	[col. b]
Pauli I V. incip. Cum ex Apostolatus officio, de quibusvis Magistratibus, & Dominis Ecclesiasticis, & Temporalibus incidentibus in schisma, de quo dixi in tit. de schismate.	Paul IV beginning <i>Cum ex Apostolatus officio</i> , concerning any Magistrates whatsoever, and Lords both Ecclesiastical and Temporal, falling into schism, of which I have spoken in the title on schism.
Quartus casus est, in Lamijs, quæ per Maleficia aliquos occiderint, vt per Constitutionem Gregorij XV. de qua in tit. de Sortilegis, quæ Bulla impressa habetur post <i>part. 4. resol. moral. P. Dianæ</i> .	The fourth case is in Witches, who by acts of Sorcery shall have killed any persons, as by the Constitution of Gregory XV, of which in the title on Sorcerers; which Bull is had printed after <i>part. 4. resol. moral. P. Dianæ</i> .
B. Printed p. 76 — § XII, <i>De pænis Schismatis</i>, nn. 42–47 complete	B. Printed p. 76 — § XII, <i>De pænis Schismatis</i>, nn. 42–47 complete
§. DECIMVS SECVNDVS.	§ TWELVE.
<i>De pænis Schismatis.</i>	<i>On the penalties of Schism.</i>
42. PRima Schismaticorum pœna est priuatio Ecclesiasticæ potestatis (loquendo de potestate Iurisdictionis non Ordinis) <i>text. est in cap. didicimus 24. quæst. 1. Sanch. in summa lib. 2. cap. 36. num. 10. & Card. Tuschus pract. conclus. tom. 7. litera S. conclus. 55. num. 1. & sequ. Bonacin. de censuris in specie disputat. prima, de censuris Bullæ Cænæ quæst. 2. punct. 5. num. 8. Suarez de charitate disput. 12. sect. 2. numer. 3. qui allegant alios.</i>	42. THE first penalty of Schismatics is deprivation of Ecclesiastical power (speaking of the power of Jurisdiction, not of Order), <i>text. est in cap. didicimus 24. quæst. 1. Sanch. in summa lib. 2. cap. 36. num. 10. & Card. Tuschus pract. conclus. tom. 7. litera S. conclus. 55. num. 1. & sequ. Bonacin. de censuris in specie disputat. prima, de censuris Bullæ Cænæ quæst. 2. punct. 5. num. 8. Suarez de charitate disput. 12. sect. 2. numer. 3. qui allegant alios.</i>
43. An autem hæc pœna habeat locum in schismatico non denunciato, controuertunt Scribentes; Nam	43. But whether this penalty has place in a schismatic who has not been denounced, the Writers dispute; for
<i>Azor. institut. moral. par. 1. lib. 8. cap. 20. quæsito 9. & Valentia tom. 3. disp. 3. q. 15. punct. 3. existimarunt Schismaticum, etiam antequam sit denunciatus carere Ecclesiastica iurisdictione.</i>	<i>Azor. institut. moral. par. 1. lib. 8. cap. 20. quæsito 9. & Valentia tom. 3. disp. 3. q. 15. punct. 3. have judged that a Schismatic, even before he is denounced, lacks Ecclesiastical jurisdiction.</i>
<i>Toletus verò lib. 1. summ. cap. 13. nu. 2. & Sotus in 4. dist. 12. q. 1. art. 4. Leonard. Duardus ad Bullam Cænæ lib. 2. can. 1. q. 56. num. 13. vers. Quæ quidem, & Bonacina in Decalogum disp. 3. qu. 4. punct. vlt. §. 5. nu. 8. & loco supra allegato num. 9. probabilius oppositum censuerunt: nam ex Consilio Constantiensi, cuius Constitutionem referunt Tolet. & Sotus locis supra citatis, nullus ex vi prohibitionis Ecclesiasticæ vitandus est, nisi notorius sit percussor Clerici, vel nominatim denunciatus sit reus perpetrati delicti, cui est adiuncta communionis priuatio.</i>	<i>Toletus verò lib. 1. summ. cap. 13. nu. 2. & Sotus in 4. dist. 12. q. 1. art. 4. Leonard. Duardus ad Bullam Cænæ lib. 2. can. 1. q. 56. num. 13. vers. Quæ quidem, & Bonacina in Decalogum disp. 3. qu. 4. punct. vlt. §. 5. nu. 8. & loco supra allegato num. 9. have deemed the opposite more probable: for from the Council of Constance, whose Constitution Tolet. & Sotus locis supra citatis report, no one is to be shunned by force of the Ecclesiastical prohibition, unless he be a notorious striker of a Cleric, or have been denounced by name as guilty of a perpetrated offence to which deprivation of communion is attached.</i>

Latin

44. Secunda Schismaticorum pœna est excommunicatio lata in 1. can. Bullæ Cænæ.

Nam an de Iure antiquo essent excommunicati, controuersum est inter DD. *ita Sanch. dicto can. 36. nu. 11. Duardus d. 56. nu. 6. Suar. de charitate disp. 12. sect. 2. nu. 1. Sanctarell. de hæresi cap. 43. nu. 8. & Farinac. de hæresi q. 184. nu. 37. & seq.* Dixi Schismaticos esse excommunicatos, excommunicatione Bullæ in 1. Can. contra *Nauar. in Man. cap. 27. nu. 57.* qui ponit hanc excommunicationem in 2. Canone, sed verè *Nauar. natat contra torrentem DD. & eum latè impugnauit Alter. de censur. tom. 1. lib. 5. disput. 2. cap. 9. in principio.*

45. Hæc autem excommunicatio non compræhendit Schismaticos solùm mentales, *Sanch. nu. 15. & Duard. nu. 17. nec fautores, & d. Schismaticorum, Sanch. nu. 16. & Duard. nu. 8. Bonacin. d. punct. 5. nu. 10. vers.* Obserua quarto, licet hi ligentur excommunicatione, de qua in Bulla Pauli Quarti incip. Cum ex Apostolatus officio,

46. Ligantur tamen hac Bullæ Cænæ † censura Schismatici, solo exteriori opere, licet in eis desit intentio se subtrahendi ab obedientia Papæ vti docuerunt *Sanch. num. 14. Suar. de censur. disput. 21. sect. 2. num. 13. Duardus num. 8.* Ex quo ibi inferunt DD. censura Bullæ

[col. b]

ligari eos, qui in Anglia externæ obediētīæ signa exhibēt erga Regem, licet in mente credant ipsum non esse Christi Vicarium, *Bonacin. vbi supra versic. Obserua tertio, & Mar. Alter. de censur. tom. 1. disput. 2. lib. 5. c. 9. colum. 8. Filliuc. quæst. moral. tom. 1. tract. 16. cap. 1. numer. 48. Pater Pueronus Abb. Generalis Monachorum Montis Oliueti Dominus, acconciuis meus, in commen. suis eruditissimis in Bullam Cænæ, c. 1. n. 130.*

47. An autem in excommunicationis Bullæ nostræ compræhendantur soli schismatici, & hæretici simul: an verò etiam schismatici primi generis non habentes schisma coniunctum cum hæresi.

English

44. The second penalty of Schismatics is the excommunication laid down in the 1st canon of the Bull Cænæ.

For whether by the ancient Law they were excommunicated is controverted among the Doctors, *ita Sanch. dicto can. 36. nu. 11. Duardus d. 56. nu. 6. Suar. de charitate disp. 12. sect. 2. nu. 1. Sanctarell. de hæresi cap. 43. nu. 8. & Farinac. de hæresi q. 184. nu. 37. & seq.* I have said that Schismatics are excommunicated with the excommunication of the Bull in the 1st Canon, against *Nauar. in Man. cap. 27. nu. 57.*, who places this excommunication in the 2nd Canon; but in truth *Nauar. swims against the torrent of the Doctors, and Alter. de censur. tom. 1. lib. 5. disput. 2. cap. 9. in principio* has impugned him at length.

45. But this excommunication does not comprehend merely mental Schismatics, *Sanch. nu. 15. & Duard. nu. 17. nor the abettors, and d. of Schismatics, Sanch. nu. 16. & Duard. nu. 8. Bonacin. d. punct. 5. nu. 10. vers.* Obserua quarto, although these are bound by the excommunication of which [is treated] in the Bull of Paul IV beginning **Cum ex Apostolatus officio**,

46. Schismatics are nevertheless bound by this censure of the Bull Cænæ † by the outward deed alone, although in them the intention of withdrawing themselves from obedience to the Pope be lacking, as *Sanch. num. 14. Suar. de censur. disput. 21. sect. 2. num. 13. Duardus num. 8.* have taught. From which the Doctors there infer that by the censure of the Bull

[col. b]

there are bound those who in England exhibit signs of outward obedience toward the King, although in mind they believe him not to be the Vicar of Christ, *Bonacin. vbi supra versic. Obserua tertio, & Mar. Alter. de censur. tom. 1. disput. 2. lib. 5. c. 9. colum. 8. Filliuc. quæst. moral. tom. 1. tract. 16. cap. 1. numer. 48.* Father Pueroni, Abbot General of the Monks of Monte Oliveto, Lord, and my fellow-citizen, in his most erudite commentaries in *Bullam Cænæ, c. 1. n. 130.*

47. But whether under the excommunication of our Bull there are comprehended only those who are schismatics and heretics at once: or whether also schismatics of the first kind, not having schism joined with heresy.

Latin

Farinac. tenet solummodo Schismaticos habentes cum schismate hæresim coniunctam compræhendi ex eo, quod hi propriè sint schismatici, *ita quæst. 184. num. 59.*

At *Duardus dicta quæst. 59. n. 6. Sanch. & Suar. locis citatis*, manifestè docuerunt, etiam schismaticos, non habentes cum schismate hæresim coniunctam, compræhendi Bulla Cænæ, quia etiam hi strictè sunt schismatici, vt supra vidimus, & schismatici secundi generis iam sunt excommunicati per eandem Bullam nostram sub nomine Hæreticorum.

(*n. 48, “Tertia pæna est inhabilitas ad beneficia in futurum consequenda...”*, follows; not transcribed.)

C. Printed p. 78 — close of § XV (with the “conciuis meus” sentence) and § XVI Quomodo se debeat gerere Confessarius cum Schismaticis entire, nn. 60, 70–76

(*Left column, continuing § XV, on the confession of Apostasy. The “conciuis meus” sentence is the last clause of the second paragraph below.*)

cessario in confessione explicandam, prout tenuit idem *Diana loco supra allegato resolut. 54.*

Sequentes verò aliam sententiam de necessaria explicatione harum circumstantiarum in confessione, quam nos probabiliorem iudicauimus, tenere debent circumstantiam Apostasiæ esse necessario confitendā, cum sine dubio notabiliter aggrauet peccatum Hæresis, prout in indiuiduo tenuerunt *Suarez de fide disp. 16. sect. 5. in fine. Sanch. in summ. lib. 2. cap. 7. num. 17. Valentia 2. 2. disput. 1. quæst. 11. punct. 1. & 10. punct. 5. qui alios allegant, quibus addi potest Layman. in summ. lib. 2. tract. 1. cap. 16. num. 3. & post hæc scripta visus Reuerendissimus Dominus, ac conciuis meus Pueronus Abb. Gen. Monachorum Montis Oliueti in Bullam Cænæ cap. 1. num. 36.*

Animaduertit tamen confessarius, quod si Apostasia sit tantùm exterior, & in intellectu suo rectè pœnitens senserit de Catholica fide, poterit a quocunque confessario absolui, nec excommunicationem Bullæ Cænæ vlllo modo incurrit, *ita Valer. de differentijs vtriusque fori, verbo Hæresis, differentia 1. num. 1. &*

English

Farinac. holds that only those Schismatics who have heresy joined with schism are comprehended, on the ground that these are schismatics properly so called, *ita quæst. 184. num. 59.*

But *Duardus dicta quæst. 59. n. 6. Sanch. & Suar. locis citatis* have manifestly taught that schismatics also, who do not have heresy joined with schism, are comprehended by the Bull Cænæ, because these too are strictly schismatics, as we have seen above; and schismatics of the second kind are already excommunicated by this same our Bull under the name of Heretics.

(*n. 48, “The third penalty is the incapacity for obtaining benefices in the future...”*, follows; not transcribed.)

C. Printed p. 78 — close of § XV (with the “conciuis meus” sentence) and § XVI Quomodo se debeat gerere Confessarius cum Schismaticis entire, nn. 60, 70–76

(*Left column, continuing § XV, on the confession of Apostasy. The “conciuis meus” sentence is the last clause of the second paragraph below.*)

...cessarily to be explained in confession, as the same *Diana loco supra allegato resolut. 54.* held.

But those who follow the other opinion concerning the necessary explanation of these circumstances in confession — which we have judged the more probable — must hold that the circumstance of Apostasy must necessarily be confessed, since without doubt it notably aggravates the sin of Heresy, as in the particular case *Suarez de fide disp. 16. sect. 5. in fine. Sanch. in summ. lib. 2. cap. 7. num. 17. Valentia 2. 2. disput. 1. quæst. 11. punct. 1. & 10. punct. 5. qui alios allegant, quibus addi potest Layman. in summ. lib. 2. tract. 1. cap. 16. num. 3.* have held; and, after these things were written, there was seen the Most Reverend Lord, and **my fellow-citizen Pueroni, Abbot General of the Monks of Monte Oliveto, in Bullam Cænæ cap. 1. num. 36.**

The confessor is nevertheless to observe that if the Apostasy be only outward, and the penitent has in his understanding held rightly concerning the Catholic faith, he can be absolved by any confessor whatsoever, nor does he in any way incur the excommunication of the Bull Cænæ; thus *Valer. de differentijs vtriusque fori, verbo Hæresis, differentia 1. num. 1.* and others

Latin

alij alleg. per me supra tit. 2. §. fin. num. 49. quamuis Diana resolut. moral. par. 3. tract. 4. resolut. 143. & licet in fine illius resolut. dicat hanc opinionem displicere multis: attamen est mera veritas, & eandem opinionem vti verissimam, secutus fuit Reuerendissimus Pueronus supra per me sæpe citatus in suis commentarijs ad Bullam Cænæ Domini cap. 4. num. 37.

68. Proponet vlterius confessarius Apostatæ, infelicem ipsius statum, & exitum ex Scriptura Diuina Prouerbiorum cap. 6. *Homo Apostata vir inutilis graditur ore peruerso innuit oculis, terit pede, digito loquitur prauo corde machinatur malum, & omni tempore iurgia seminat, Huic ex templo veniet perditio sua, & subito conteretur, nec habebit vltra medicinam.* Quem locum accommodauit Cardinalis Baronius tom. 4. Annal. circa annum Domini 363. & Spondan. in Epit. ibidem num. 16. Iuliano Apostatæ, & omnibus alijs Apostatis. Et de Apostatarum infelici morte, vide eundem *Spondan. ad Annum Domini 362. numer. 24.* Tandem . vt supra monui, omnia, quæ diximus obseruanda circa Hæreticos, obseruabit confessarius circa Apostatas.

§. DECIMVS SEXTVS.

Quomodo se debeat gerere Confessarius cum Schismaticis.

60. QVoniam, vt supra vidimus §. 10. Schisma aliquando est coñiunctum cum hæresi, aliquando non, cum est cum hæresi coniunctum, tunc confessarius, circa schismaticum eo modo se geret, quomodo diximus supra se se gerere debere circa hæreticum.

Si verò Schisma sit ab hæresi se iunctum, tunc

70. In primis animaduertet confessarius differentiam, quæ versatur inter excommunicationem latam ob hæresim, & ob schisma, quia illa requirit copulatiuè errorem in intellectu, & manifestationem illius extrinsecam: hæc verò solum extrinsecum opus requirit, quod sufficit ad censuram incurrendam, etiamsi non adsit animus se subtrahendi ab obedientia Pontificis, vt est caput Ecclesiæ, ita *Suar. Sanch. Duard.* & alij allegati per *Bonacin. de censur. in specie tom. 3. disput. 1. q. 2. punct. 5. num. 10. vers.* Secundo patet: quibus addi potest *Scortia in selectas Rom.*

English

cited by me above *tit. 2. §. fin. num. 49. quamuis Diana resolut. moral. par. 3. tract. 4. resolut. 143.*; and although at the end of that resolution he says that this opinion displeases many, nevertheless it is the plain truth, and the Most Reverend Pueroni, often cited by me above, followed the same opinion as most true in his commentaries on the Bull Cænæ Domini, *cap. 4. num. 37.*

68. The confessor shall further set before the Apostate his unhappy state and end, out of Divine Scripture, Proverbs chapter 6: *A man that is an apostate, an unprofitable man, walketh with a perverse mouth, He winketh with the eyes, presseth with the foot, speaketh with the finger, With a wicked heart he deviseth evil, and at all times he soweth discord. To such a one his destruction shall presently come, and he shall suddenly be destroyed, and shall no longer have any remedy.* Which passage Cardinal Baronius, tom. 4. Annal., about the year of the Lord 363, and Spondan. in Epit. ibidem num. 16, applied to Julian the Apostate, and to all other Apostates. And on the unhappy death of Apostates, see the same *Spondan. ad Annum Domini 362. numer. 24.* Finally . as I have advised above, all the things which we have said are to be observed with regard to Heretics, the confessor will observe with regard to Apostates.

§ SIXTEEN.

How the Confessor is to conduct himself with Schismatics.

60. SINCE, as we have seen above at § 10, Schism is sometimes joined with heresy and sometimes not, when it is joined with heresy, then the confessor will conduct himself toward the schismatic in that manner in which we have said above that he must conduct himself toward the heretic.

But if the Schism be disjoined from heresy, then

70. In the first place the confessor is to observe the difference which obtains between the excommunication laid down for heresy and that laid down for schism: because the former requires conjunctively an error in the understanding, and the outward manifestation of it; the latter, however, requires only the outward deed, which suffices for incurring the censure, even if there be not present the intention of withdrawing oneself from obedience to the Pontiff, as he is head of the Church; thus *Suar. Sanch. Duard.* and others cited by *Bonacin. de censur. in specie tom. 3. disput. 1. q. 2. punct. 5. num. 10. vers.* Secundo patet: to whom may be added *Scortia in*

Latin

Pontificum Constit. Epit. 166. theorem. 410. vers. Quod spectat ad tertiam partem, ibi, Hinc collige Catholicos, cum alijs de quibus supra.

[col. b]

71. Secundo fautores, defensores, & receptatores Schismaticorum incurrunt tantummodo censuram latam à Const. Pauli I V. de qua supra numer. 41. quæ cum nulli sit reservata, poterit à quocunque confessario tolli, *Duard. in Bullam Cænæ lib. 2. can. 1. quæst. 56. num. 18. vers.* Benè verum est, *Bonacin. vbi supra, vers.* Obserua quarto, *Abb. Pueronus ad Bullam Cænæ Domini cap. 1. num. 246.*

72. Tertio, Existentibus duobus Summis Pontificibus eodem tempore, si constet de canonica electione, vnus, & de alterius electione non canonica, consulere debet confessarius pœnitenti, & præcipere, quod pro vero Pontifice eum agnoscat, quem constat canonicè electum: Si verò res est dubia, & de alterutrius canonica electione minimè constet, tunc confessarius consulere debet pœnitentibus, quod teneant se vti membra vnus Ecclesiæ Catholicæ, & se referant ad eius Supremum caput Christum Dominum, ac Pontifices illos, non vti certos, sed vti dubios agnoscant, promptosque se exhibeant ad illum pro vero Pontifice agnoscendum, quem pro tali approbavit Concilium Generale, *Mar. Alterius de censuris lib. 5. disput. 2. cap. 9. vers.* Si postules, & *vers.* Addo etiam, vbi addit, quod in tali dubio quisque potest negare alterum ex illis esse verum Pontificem, absque periculo peccati mortalis, vel excommunicationis, *Nald. in summ. verbo, Bulla Cænæ Domini, num. 16. qui alios allegat, Abb. Pueronus ad Bullam Cænæ cap. 1. num. 243. & sequent.*

73. Quarto animaduertere debet confessarius, quod qui diceret non esse de fide hunc numero Papam exempli gratia, S. D. N. Innocentium Decimum esse verum Pontificem non est habendus pro Schismatico, sed pro vero hæretico, vt latissimè probauit *Suar. videndus de fide disput. 10. sect. 5. per totam*, vbi hoc pluribus Concilij Summorum Pontificum Constitutionibus, & Patrum auctoritatibus comprobauit. Sicut enim Ecclesiam Dei visibilem, esse hanc numero est de fide, ita etiam esse debet de fide, illius caput visibile, cui subest, & obedire tenetur, esse hunc hominem visibilem, pro Summo Pontifice communi Ecclesiæ consensu

English

selectas Rom. Pontificum Constit. Epit. 166. theorem. 410. vers. Quod spectat ad tertiam partem, there, Hinc collige Catholicos, with the others of whom above.

[col. b]

71. Secondly, the abettors, defenders and harbourers of Schismatics incur only the censure laid down by the Constitution of Paul IV, of which above at number 41; which, since it is reserved to no one, can be removed by any confessor whatsoever, *Duard. in Bullam Cænæ lib. 2. can. 1. quæst. 56. num. 18. vers.* Benè verum est, *Bonacin. vbi supra, vers.* Obserua quarto, *Abb. Pueronus ad Bullam Cænæ Domini cap. 1. num. 246.*

72. Thirdly, when there exist two Supreme Pontiffs at the same time, if the canonical election of the one is established and the non-canonical election of the other, the confessor must advise the penitent, and command, that he acknowledge for true Pontiff the one who is established to have been canonically elected: But if the matter is doubtful, and the canonical election of neither is established, then the confessor must advise the penitents to hold themselves as members of the one Catholic Church, and to refer themselves to its Supreme head, Christ the Lord, and to acknowledge those Pontiffs **not as certain, but as doubtful**, and to show themselves ready to acknowledge for true Pontiff the one whom the General Council shall have approved as such, *Mar. Alterius de censuris lib. 5. disput. 2. cap. 9. vers.* Si postules, and *vers.* Addo etiam, where he adds that in such a doubt anyone may deny that either one of them is the true Pontiff, without danger of mortal sin or of excommunication, *Nald. in summ. verbo, Bulla Cænæ Domini, num. 16. qui alios allegat, Abb. Pueronus ad Bullam Cænæ cap. 1. num. 243. & sequent.*

73. Fourthly, the confessor must observe that one who should say that it is not of faith that this-in-number Pope — for example, Our Most Holy Lord INNOCENT X — is the true Pontiff, is not to be held for a Schismatic, but for a true HERETIC, as *Suar. videndus de fide disput. 10. sect. 5. per totam* has proved most amply, where he has confirmed this by many Councils, by Constitutions of the Supreme Pontiffs, and by the authorities of the Fathers. For just as it is of faith that this-in-number is the visible Church of God, so also must it be of faith that her visible head — to whom she is subject and is bound to obey — is **this visible man, held for Supreme Pontiff by the common consensus of the Church**; and if this is

Latin

habitus; & si hoc est de fide, ergo contrarium asserens, est hæreticus, benè *Turrian. videndus in suis selectis disput. part. 1. disp. 35. dub. 5.* vbi quod hoc certius nunc est, quam esset ante tempora Clem. VIII. latè Bonacin. post hæc scripta visus, de censuris in specie *tom. 3. eius operum disp. 1. quæst. 2. punct. 1. n. 9.* & *Pater Pueronus nouissimè visus ad Bullam Cænæ cap. 1. num. 142.*

74. Quintò, circa Schismaticum confessarius eo modo se geret proportionaliter, quo modo *supra tit. 2.* docuimus eum se gerere debere cum hæretico.

Nam sublata à schismatico censura ab Episcopo, & Inquisitore, abiurato schismate, & hæresis suspicione in foro externo, eadem exiget ab eodem in foro interno: Monereque debet eum de grauitate schismatis, quam confessarius colligere potest.

Tùm ex eo, quod schisma Ecclesiam Dei in Tunica D. N. inconsutili, & in vnica Arca Noè figuratam, & de qua in Canticis 6. dicitur: *Vna est Columba mea, perfecta mea: vna est matri suæ electa genitrici suæ:* vt notatur in Extrauagan. vnam Sanctam, de maior. & obedientia, scindit, & diuidit, vnde Beda in Martirológ. die 25. Nouembris refert Christum B. Petro Alexandrino Episcopo, veste conscissa apparuisse, eique dixisse: *Hoc fecisse Arium, quia Ecclesiam lacerauerat.*

75. Tùm ex diuinis vltionibus schismaticis immissis, vnde Num. 16. iussu Omnipotentis Dei, terra viuos absorbit Datan, & Abiron.

76. Tùm deniq; ex aureo monito Discipulis suis tradito

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à Beato Antonio Magno moriente, in hæc verba relato à Sancto Athanasio in eius vita: *Schismaticorum, Inquit & Hæreticorum venena vitate, meumque in eos odium consecramini, quia Christi sunt inimici, scitis ipsi, quod nullus mihi, nec pacificus quidem sermo, cum ijs aliquando fuerit propter eorum prauam voluntatem, & pertinax contra Christum bellum.*

English

of faith, then one asserting the contrary is a heretic; well *Turrian. videndus in suis selectis disput. part. 1. disp. 35. dub. 5.*, where [he notes] that **this is now more certain than it was before the times of Clement VIII**; at length Bonacin., seen after these things were written, de censuris in specie *tom. 3. eius operum disp. 1. quæst. 2. punct. 1. n. 9.* & *Pater Pueronus nouissimè visus ad Bullam Cænæ cap. 1. num. 142.*

74. Fifthly, toward the Schismatic the confessor will conduct himself proportionally in that manner in which *supra tit. 2.* we have taught that he must conduct himself with the heretic.

For, the censure having been removed from the schismatic by the Bishop and the Inquisitor, and the schism and the suspicion of heresy having been abjured in the external forum, he will exact the same things from the same man in the internal forum: And he must admonish him of the gravity of schism, which the confessor can gather:

Both from this, that schism cuts and divides the Church of God — figured in the seamless Tunic of Our Lord, and in the one Ark of Noah, and of which in Canticles 6 it is said: *One is my dove, my perfect one is but one, she is the only one of her mother, the elect of her that bore her:* as is noted in the Extravagant *Vnam Sanctam, de maior. & obedientia* — whence Bede in the Martyrology, on the 25th day of November, relates that Christ appeared to Blessed Peter, Bishop of Alexandria, with His garment rent through, and said to him: *that Arius had done this, because he had torn the Church.*

75. And from the divine vengeance sent upon schismatics, whence Numbers 16: at the command of Almighty God, the earth swallowed up alive Dathan and Abiron.

76. And finally from the golden admonition delivered to his Disciples

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by Blessed Antony the Great as he was dying, reported in these words by Saint Athanasius in his life: *The poisons of Schismatics, He says, and of Heretics, avoid, and pursue my hatred toward them, because they are the enemies of Christ; you yourselves know that never had I any discourse with them, not even a peaceable one, on account of their depraved will and their obstinate war against Christ.*

Latin

Similiter schismaticum moneat confessarius, de penis, quas ob schisma contraxit, cum eas in foro etiam conscientiae omnino observare teneatur, & ei salutes penitentias, & delicto, & personae qualitati congruas prudenti ipsius arbitrio iniungat.

(The rule and the heading TITVLVS QVARTVS. / De Fautoribus Hæreticorum follow; not transcribed.)

Sic-notes and typographic anomalies

English

In like manner let the confessor admonish the schismatic of the penalties which he has contracted on account of schism, since he is bound to observe them entirely in the forum of conscience also; and let him enjoin upon him salutary penances, suited both to the offence and to the quality of the person, at his own prudent discretion.

(The rule and the heading TITVLVS QVARTVS. / De Fautoribus Hæreticorum follow; not transcribed.)

Sic-notes and typographic anomalies